

In addition, Settling Defendants have made a prima facie showing of a good faith based on their motion and sealed filing. *See, e.g.*, Redacted Confidential Coulston Decl., ¶ 2, Ex. C. As noted before, the Non-Settling Defendant was advised of the settlement, including the confidential terms and amount of the settlement, and has not opposed the same. *See* Coulston Decl., ¶ 4, Ex. A. The presumption of good faith has not been challenged or rebutted. Therefore, the motion is granted.

2. CU0002033 Ingrid Speck, et al. vs. Justfly Corp., et al.

Defendants Justfly Corp. and Justfly, Inc.’s motion to set aside the defaults and default judgment is granted.

Defendants argue, among other things, that the defaults were never properly requested or entered as to the operative complaint such that the defaults and associated judgment are void. The Court agrees.

The court has authority to set aside a void judgment at any time. *Heidary v. Yadollahi* (2002) 99 Cal.App.4th 857, 862. “Indeed, section 473 itself contains a separate provision [subd. (d)] allowing the court to set aside a void judgment without any mention of a time limit. *Ibid.*; *see, e.g., Plotitsa v. Superior Court* (1983) 140 Cal.App.3d 755, 761 (“a default that is void on the face of the record when entered is subject to challenge at any time irrespective of lack of diligence in seeking to set it aside within the six-month period of [Code of Civil Procedure] section 473”).

“An ‘amended’ complaint supersedes all prior complaints, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” *Malear v. State of California* (2023) 89 Cal.App.5th 213, 221 (quotations and citations omitted); *see also LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 875, n. 5. (“ ‘an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading. ’ ‘Such amended pleading supplants all prior complaints. ... ’ ”)(citations and quotations omitted).

At bar, the defaults at issue were improvidently entered by the Clerk. Plaintiffs filed this action on April 18, 2025, and subsequently filed a First Amended Complaint (“FAC”) on June 23, 2025, which became the operative complaint. On *September 29, 2025*, Plaintiffs sought entry of default against Defendants as to the Complaint filed on April 18, 2025. *See* 9/29/25 Request for Default as to Justfly, Inc.; 9/29/25 Request for Default as to Justfly Corp. The Clerk incorrectly entered those defaults in connection with the non-operative complaint on or about the same date. These defaults are set aside.

Plaintiffs filed a March 2, 2026, request for default judgment as to the original 2025 complaint, which was granted by Judge Anderson (visiting judge) on March 6, 2026. That judgment is likewise void as it was premised on a non-operative complaint.

Finally, the Clerk entered a May 11, 2026, order setting aside the May 4, 2026, answers by Justfly, Inc. and Justfly Corp. to the operative amended complaint based on a belief that they had been defaulted. That was also erroneous. No lawful default or judgment barred the filing of

those answers. The Court vacates the Clerk's May 11, 2026, minute order, and orders that the answers be deemed filed as of May 4, 2026.

None of Plaintiffs' arguments to the contrary persuade the Court otherwise.

There were numerous other assignments of error by the moving parties. The Court need not address the same given the disposition noted.

A case management conference is set for November 2, 2026, at 9:00 a.m., in Department 6.

3. CU0001483 Susan Gabrielle vs. Phillip G. Conlon, Jr.

Appearances are required by the parties to discuss the results of the property inspection and status as to the sale of the property.

4. CU0000090 Matthew Palleschi, et al. v. Daniel Fraiman Construction, Inc., et al.

Motion for Reconsideration

Defendants Daniel Fraiman Construction, Inc. and Daniel Fraiman's motion for reconsideration and immediate stay is denied.

Legal Standard

Any affected party may make an application to the same judge or court to reconsider the matter and modify, amend, or revoke the prior order when an application for an order made to a judge or a court is refused in whole or in part, or granted, or granted conditionally, or on terms within 10 days after service upon the party of written notice of entry of the order and *based upon new or different facts, circumstances, or law*. Code Civ. Proc. § 1008(a) (emphasis added). Contentions that the court has made an error of law or refused to consider evidence are not new facts as required for a motion under Code of Civil Procedure section 1008. *Jones v. P.S. Development Co., Inc.* (2008) 166 Cal.App.4th 707, 724. "New facts" is defined as facts which were not available to the party at the time of the hearing. *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468. To prevail on a motion for reconsideration based on new facts, a party must provide a satisfactory explanation for failing to offer the evidence in the first instance. *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212. The new facts offered must be accompanied by a showing of strong diligence in discovery and bringing the new facts; absent a strong showing of diligence, the motion will be denied. *Forrest v. Department of Corporations* (2007) 150 Cal.App.4th 183, 202. Where the motion for reconsideration brings no valid new fact to the merits of the underlying motion, and merely raises a collateral matter, reconsideration will be denied. *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.